

ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:	)	
	)	
ALEXANDER VOINTSEV	)	H.M. Lewin, for the Plaintiff Alexander
	)	Vointsev
	)	
Plaintiff	)	
	)	
- and -	)	
	)	
IRINA INTERNATIONAL TOURS	)	No one appearing for the Defendant
LIMITED	)	Irina International Tours Limited
	)	
Defendant	)	
	)	
	)	HEARD: September 11 and 20, and
	)	December 3, 2007

THORBURN J.

Background

[1] This is an undefended trial where the Plaintiff, Alexander Vointsev seeks damages to compensate him for pain and suffering, economic losses and special damages he says he suffered due to a slip and fall injury sustained during a tour of the City of Toronto with the Defendant, Irina International Tours Limited. There are no *Family Law Act* claims asserted.

[2] The Defendant has been noted in default.

[3] Rule 19.06 of the *Rules of Civil Procedure* provides that in order to obtain judgment, even where the Defendant has been noted in default, the facts must entitle the Plaintiff to judgment. The Plaintiff has therefore presented evidence regarding the issue of liability and damages.

[4] The Plaintiff presented its case on September 11, 2007. At that time counsel for the Plaintiff sought to introduce hospital records from the University Health Network, doctors' clinical notes and records and an extract from the outpatient's medical card and a medical report

from a Russian doctor (in Russian) and a certified translation of the report. Counsel reattended on September 20 to make submissions regarding the admissibility of that evidence and I rendered a ruling on September 24, 2007.

[5] I did not permit the Plaintiff to rely on the above documents as business records or medical reports as the Plaintiff did not serve the Defendant with any of the above documents nor did he serve a notice of his intention to rely on the above documents at trial as required by the Ontario *Evidence Act*. The Plaintiff was permitted to choose to continue without the benefit of the documents he sought to introduce, to close his case, or to lead further admissible evidence either by way of *viva voce* evidence or by seeking leave to allow the evidence of a witness or proof of a particular fact or document to be given by affidavit pursuant to Rule 53.02 of the *Rules of Civil Procedure*.

[6] Counsel advised that he was appealing the ruling and wished to continue the trial once the appeal had been heard.

[7] Counsel later advised that he was abandoning his appeal and wished to complete the trial. He did so on December 3, 2007.

[8] For the reasons set out below, I award the Plaintiff general damages in the amount of \$65,000.00, damages for loss of income in the amount of \$3,000.00, special damages in the amount of \$19,966.54 plus prejudgment and post-judgment interest in accordance with the *Courts of Justice Act*. The Plaintiff is also entitled to partial indemnity costs and disbursements as set out below.

The Facts

[9] This case involves a slip and fall accident. The Plaintiff is employed as a foreman and manager in a heat station in Moscow, Russia. He is 57 years of age. Prior to the accident, the Plaintiff had suffered no serious injuries or broken bones.

[10] In July, 2005 the Plaintiff and his wife decided to come to Canada to visit their daughter and her family in North York. The Plaintiff's daughter bought an airplane ticket and arranged for travel insurance for her parents. While in Canada, the Plaintiff and his wife stayed at their daughter's house.

The Accident

[11] On July 18, 2005, the Plaintiff was on a minibus tour of the city of Toronto. The minibus stopped to allow passengers to get out of the minivan. No one was helping the passengers exit the minivan. The tour operator failed to fully fold down the seat and the Plaintiff tripped on the front car seat causing him to fall out of the minivan.

[12] The Plaintiff says he fell onto the sidewalk and hit his head and hand and could not get up. The tour guide and other passengers assisted him to a nearby bench. The tour operator “expressed sympathy” for him and then left with the other passengers to complete the tour.

[13] After the minivan left the Plaintiff’s wife called her daughter and she and her husband arrived approximately one hour later. The Plaintiff’s daughter called an ambulance. The ambulance took the Plaintiff to Toronto Western Hospital.

The Plaintiff’s Pain and Suffering

[14] As a result of the fall, the Plaintiff suffered a fracture of the left femur, just under the hip which required open reduction internal fixation surgery. The Plaintiff had stitches on his leg and a metal construction was inserted inside his leg and screwed in at the upper and lower ends. The Plaintiff’s orthopaedic surgeon, Dr. Davey, testified that the fracture was “severe”.

[15] The Plaintiff was in hospital until July 22. Thereafter, he went to his daughter’s house to recover. For three weeks he remained in bed. Thereafter, he walked on crutches until September 20th when he began to use a cane.

[16] The Plaintiff returned to Moscow on October 5, 2005.

[17] By December 5 he was almost never using his cane but since then he still has pain from time to time. In 2006, the Plaintiff said he was receiving physiotherapy but has received no further medical treatment since March of 2006.

[18] The Plaintiff says he no longer does active sports or takes long walks with his wife. He sometimes has difficulty going up the subway stairs in Moscow.

[19] There was no evidence to suggest that the Plaintiff’s current condition would become worse.

The Statement of Claim and Noting in Default

[20] On September 6, 2005, counsel for the Plaintiff put the Defendant on notice that his client intended to commence an action against the Defendant’s insured for damages including economic and non-economic loss.

[21] On September 30, 2005 the Plaintiff’s counsel received a letter from Paul Bereza, Senior Casualty Adjuster for Lombard Canada advising that, “the undersigned has been assigned to investigate the above captioned incident....Kindly provide us with documentation to support your client’s claims.”

[22] A Statement of Claim was issued on July 14, 2006. In the Statement of Claim, the Plaintiff seeks general damages in the amount of \$500,000.00, special damages in the amount of

\$500,000.00 and damages for future loss of income and earning capacity in the amount of \$1,000,000.00.

[23] On October 11, 2006, counsel for the Plaintiff wrote a letter to Lombard and stated that, “I understand you advised my law clerk on September 29, 2006, that you are investigating whether this vehicle is insured with your company. However, I have heard nothing further. This is causing unreasonable delay. Kindly provide your Statement of Defence. If we do not hear from you within 15 days, I will note your client in default.”

[24] The Plaintiff’s counsel asserts that he received no further communication from the Defendant or Lombard. The Defendant was noted in default on November 1, 2006.

Analysis and Conclusions re Liability and Damages Suffered by the Plaintiff

Liability

[25] On the basis of the plaintiff’s evidence alone (no evidence having been provided on behalf of the Defendant), I find that the Defendant was negligent in failing to fully fold down the seat so as to ensure that the Plaintiff did not trip on the car seat of the minivan. I also find that the Plaintiff was injured as a result of the fall.

General Damages

[26] Where the Defendant’s actions result in physical injury, losses such as pain and suffering and loss of enjoyment of life are compensable as are the losses that will have to be endured in the future. Such loss must be determined on the basis of the effect of the injury on the Plaintiff and not simply by a comparison of awards made in other cases. However, the fairness of the award can be affected by the need to achieve a consistency and uniformity of result.¹

[27] The Plaintiff’s counsel submits that the Plaintiff should be awarded “\$75,000.00 to \$100,000.00” for general damages.

[28] The Plaintiff referred me, *inter alia*, to the first three cases listed below. All involve injuries and or ongoing pain that are more severe than in the case before me. I have also had an opportunity to review a few other cases involving similar facts.

[29] In *Bannon v. Thunder Bay (City)*², a 47 year old woman was awarded damages in the amount of \$85,000.00 for pain and suffering and loss of enjoyment of life. In that case, the court determined that the Plaintiff’s life “has been significantly altered as a result of the injury suffered...She continues to suffer from persistent pain with the result that her pain medication has been stepped up...Her mobility and activity levels have been greatly restricted. She is unable to walk for any more than one block...her daughter does most of the heavy [household]

¹ *Koukounakis v. Stainwood* (1995), 23 O.R. (3d) (C.A.) at pp. 309.

² *Bannon v. Thunder Bay (City)* [2002] O.J. No. 3296

work. Even the groceries have to be delivered by taxi. Her prognosis is not good. Long-term problems of increased degenerative arthritis appear certain and a total left knee replacement is a future probability.”

[30] In *Zicari v. Young*³, a 29 year old Plaintiff was awarded damages for pain and suffering in the amount of \$110,000.00. However, in that case the damages suffered by the Plaintiff were much more severe than in the case before me: the left femur tibial plateau and fibula were fractured in not one but several places. The plaintiff was left with a 13 inch scar from the incision. Her right knee was also injured. She remained in hospital and was unable to walk without a cane for six months and her future prognosis was poor. The court in that case concluded that she had a serious and permanent disability as a result of the accident.

[31] In *George v. Middlemiss*⁴, a 28 year old Plaintiff was awarded \$145,000.00 in general damages for injuries that included fractures of the pelvic ring and hip joint as well as other fractures. She was in hospital nearly four months. Thereafter her mother had to look after her at home for nearly a year and the evidence was that she would probably develop premature osteoarthritis of the knee and that further surgery would be required. She was left with a permanent disability and sitting for any length of time caused her pain in her hip.

[32] In *McAlmen v. Vandel*⁵, a plaintiff suffering a fracture of the femur with two surgeries subsequent hardware removal, and a shortness of 7 to 8 millimeters of his left leg was awarded \$55,000.00.

[33] In *Martin v. Pilot Insurance Co.*⁶, the plaintiff suffered a serious and painful fracture of his left femur requiring two operations, 1 1/2 years apart. He experienced pain from the fracture as well as from the incision made to remove the pin. He suffered related back pain for a period, which ultimately resolved itself. He went through a course of recovery involving crutches, canes, physiotherapy, exercise and medication for pain relief. The plaintiff was awarded general damages in the amount of \$40,000.00. The damage award took into account that at 17 years of age, the Plaintiff’s adolescent personal maturation was compromised.

[34] In *Treberg v. Jarvis*⁷, a university aged plaintiff suffered a fracture of the right femur and injury to the knee requiring surgery, and was awarded \$45,000.00 in general damages. In that case, the Plaintiff was unable to carry his work and used tensor bandages and a knee brace regularly for four years. He had continued restrictions in his leg, knee and hip and ongoing difficulty walking in winter conditions and ongoing pain when he placed the leg under stress requiring prescription medication.

³ *Zicari v. Young* [2001] B.C.J. No. 2299

⁴ *George v. Middlemiss* [1994] B.C.J. No 1685 (B.C.S.C.)

⁵ *McAlmen v. Vandel*, [1997] O.J. No. 1489, 1997 CarswellOnt 838 (B.C.C.A.)

⁶ *Martin v. Pilot Insurance Co.*, [1991] O.J. No. 2383, 1991 Carswell Ont 2045. (Ont. C.J.)

⁷ *Treburg v. Jarvis*, [2007] N.J. No. 235, (NLTD)

[35] Having reviewed these cases and the factual similarities and differences with those of the case at hand, I conclude that the Plaintiff in this case, given the severity of his injury and his low level ongoing pain should be awarded general damages in the amount of \$65,000.00.

Loss of Income

[36] The Plaintiff returned to his job upon his return to Moscow on October 5, 2005. He says his bosses “turned a blind eye” to the fact that he could not perform his duties. He could not, for example, climb onto rooftops. Instead they put him on “light duties”.

[37] The Plaintiff states that he receives a tariff rate and bonuses from his employer. The Plaintiff lost no salary as he went back to work immediately upon his return to Moscow. However, he says he lost bonus money.

[38] According to the Plaintiff, the bonuses are two or three times more than the tariff rate paid to employees. Bonuses are only paid if an employee works from 8 am to 5 pm. If an employee is absent during that time, this adversely affects the employee’s bonus entitlement or the amount awarded. After the Plaintiff returned to work he says he lost money as a result of having to attend for medical treatment including physiotherapy during the hours of 8 am to 5 pm.

[39] The Plaintiff says the amount of wages and bonus he lost as a result of his injury is between \$3,000.00 and \$3,500.00 Canadian dollars. I found the Plaintiff to be a credible witness and as there is no evidence to dispute the Plaintiff’s claim and he did produce a chart from his employer of his prior year’s income, I accept his claim for \$3,000.00 in income lost as a result of the accident.

Special Damages

[40] For the reasons set out below, I award the Plaintiff special damages in the amount of \$19,966.54.

[41] Barbara Jin is a senior travel claims specialist for Manulife Financial. Ms. Jin testified and provided documentation to confirm that Manulife paid the sum of \$16,165.58 toward the Plaintiff’s medical expenses. Manulife has a subrogated claim for the return of these monies.

[42] The Plaintiff’s daughter provided supporting documentation to support the claim for the following sums paid by her on behalf of her father:

- a) \$525.00 to H & R Medicine for physiotherapy not covered by medical insurance;

- b) \$50.00 to her family physician to take out her father's stitches;
- c) \$80.00 for the trip ticket,
- d) \$45.00 for crutches,
- e) \$29.00 to rent a walker,
- f) \$60.00 for translation services,
- g) \$70.00 for the Plaintiff's VISA to come to Canada,
- h) \$1,121.65 for the air ticket to return to Canada and
- i) \$102.61 for medical insurance for the re-attendance to come to court.

[43] Dr. Davey testified that he treated the Plaintiff but that his doctor's bill in the amount of \$1,489.30 has not yet been paid.

[44] I consider all of the above items to be medically necessary and reasonable. I therefore allow the claim for special damages paid by Manulife in the amount of \$16,165.58 toward the Plaintiff's medical expenses. Moreover, although the Plaintiff's daughter is not a party to this proceeding, the courts have recognized that a plaintiff is entitled to compensation for necessary expenses incurred by an immediate family member on his behalf where those expenses are not gratuitous.⁸ As such, I allow the claim for \$2,311.66 in order to reimburse the Plaintiff's daughter for expenses paid by her on the Plaintiff's behalf. Finally, I award the Plaintiff the sum of \$1,489.30 in order that he may pay his outstanding medical account with Dr. Davey.

Costs and Disbursements

[45] Counsel filed a Bill of Costs. He advises that the Bill of Costs does not include his counsel fee for the one and one half hour attendance on December 3rd but does include preparation and attendance up to and including December 3rd. The partial indemnity amount claimed up to December 3rd is \$11,290.00 plus G.S.T. (This does not include the cost of preparation for and attendance on September 20, 2007 to address the *Evidence Act* issues referred to above.) I find that counsel is entitled to \$10,000.00 plus G.S.T. up to and including December 3rd, 2007.

[46] I allow the claim for disbursements set out in the Bill of Costs in the amount of \$2,621.85 as well as disbursements incurred after drafting the Bill of Costs in the amount of \$2,888.02 which includes Dr. Davey's fee (\$400.00 per hour for 2.5 hours) to attend trial, service of the summons to witness (\$83.80), costs of the language interpreter (\$304.22) and costs for the attendance of the investigator whose report was filed with the court (\$1,500.00).

⁸ *Ratych v. Bloomer* (1990), 69 D.L.R.(4th) 25 at 52, 54 (S.C.C.).

THORBURN J.

RELEASED: December 19, 2007

COURT FILE NO.: 06-CV-315154PD3

DATE: 20071219

ONTARIO

SUPERIOR COURT OF JUSTICE

B E T W E E N:

ALEXANDER VOINTSEV

Plaintiff

- and -

IRINA INTERNATIONAL TOURS LIMITED

Defendant

REASONS FOR JUDGMENT

Thorburn J.

Released: December 19, 2007